

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #13	CCRB Case #: 202301380	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 02/11/2023 12:30 AM	Location of Incident: 158 Ludlow Street	18 Mo. SOL 8/11/2024	Precinct: 07		
Date/Time CV Reported Thu, 02/16/2023 12:22 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/16/2023 12:22 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Haroon Hussain	27720	972012	013 PCT
2. PO Sean Virella	22977	970300	013 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sean Smith	30904	973782	007 PCT
2. PO Christopher Satriano	02529	972946	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Haroon Hussain	Abuse: Police Officer Haroon Hussain threatened to remove § 87(2)(b) to the hospital.	A . Substantiated
B . PO Haroon Hussain	Force: Police Officer Haroon Hussain used physical force against § 87(2)(b)	B . Unfounded
C . PO Sean Virella	Force: Police Officer Sean Virella used physical force against § 87(2)(b)	C . Unfounded
D . PO Haroon Hussain	Discourtesy: Police Officer Haroon Hussain acted discourteously toward § 87(2)(b)	D . Substantiated
E . PO Haroon Hussain	Discourtesy: Police Officer Haroon Hussain gestured discourteously toward § 87(2)(b)	E . Unable to Determine

Case Summary

On February 16, 2023, § 87(2)(b) filed this complaint with the CCRB via its online website (01 BR).

On February 11, 2023, at approximately 12:30 A.M., after bouncers escorted § 87(2)(b) out of Pianos nightclub at 158 Ludlow Street in Manhattan, Police Officer Hussain Haroon of the 13th Precinct threatened to remove § 87(2)(b) to a hospital (**Allegation A: Abuse of Authority – Threat of removal to hospital, Substantiated**). PO Haroon and Police Officer Sean Virella of the 13th Precinct allegedly pushed § 87(2)(b) up against a wall (**Allegations B and C: Force – Physical Force, Unfounded**). PO Haroon took § 87(2)(b) cell phone from his hand and placed it on the ground while § 87(2)(b) was making a phone call (**Allegation D: Discourtesy – Action, Substantiated**). PO Haroon allegedly displayed his middle finger at § 87(2)(b) (**Allegation E: Discourtesy – Gesture, Unable to Determine**).

§ 87(2)(b) was ultimately released from the scene without a summons.

Body worn camera footage was obtained from PO Hussain and PO Virella, both of the 13th Precinct, and Police Officers Sean Smith and Christopher Satriano, both of the 7th Precinct (02-06 BR).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Haroon Hussain threatened to remove § 87(2)(b) to the hospital.

Allegation (B) Force: Police Officer Haroon Hussain used physical force against § 87(2)(b).

Allegation (C) Force: Police Officer Sean Virella used physical force against § 87(2)(b).

Allegation (D) Discourtesy: Police Officer Haroon Hussain acted discourteously toward § 87(2)(b).

Allegation (E) Discourtesy: Police Officer Haroon Hussain gestured discourteously toward § 87(2)(b).

§ 87(2)(b) stated (07 BR) he was escorted out of Pianos by bouncers after an unknown person threw him to the ground inside the venue. § 87(2)(b) only consumed one alcoholic beverage the entire evening. When two officers, identified by the investigation as PO Hussain and PO Virella, approached him on the sidewalk out front, § 87(2)(b) asked to file a report against the person who threw him to the ground. The two officers did not listen to him. PO Hussain then told § 87(2)(b) that he was being put in handcuffs because he was intoxicated. The two officers handcuffed him and escorted him around the corner, where they pushed his back up against the exterior gate of the neighboring business. § 87(2)(b) called his mother using his right hand, which was still cuffed behind his back. He held the phone near his hip as he dialed. PO Hussain took § 87(2)(b) phone from his hand and threw it on top of his coats on the ground in front of him. PO Hussain also made faces at § 87(2)(b) and discreetly displayed his middle finger at § 87(2)(b) under the guise of scratching his face. § 87(2)(b) was evaluated by EMTs in the back of an ambulance. They determined he did not need medical attention, and § 87(2)(b) declined their offer to be taken to a hospital. § 87(2)(b) then left the scene.

The following BWC summary consists of a chronological compilation of PO Hussain's, PO Virella's, and PO Satriano's footage. At the beginning of PO Hussain's BWC footage (02 BR), PO Hussain approaches § 87(2)(b) in front of Pianos Bar. The two appear to have a verbal exchange

and § 87(2)(b) repeatedly makes a choking gesture with his left hand and his neck. At runtime 00:34, § 87(2)(b) places his hand near PO Hussain's BWC before pulling it away. Between 01:01 and 01:59, § 87(2)(b) types PO Hussain's and PO Virella's shield numbers into his phone. PO Hussain offers § 87(2)(b) his business card. § 87(2)(b) is breathing heavily, in a manner consistent with being winded. His speech is not slurred, he appears to understand the officers, and he does not exhibit any overt signs of intoxication. At 01:50, § 87(2)(b) explains that he got thrown to the ground by his neck inside Pianos. § 87(2)(b) holds his left hand near PO Hussain's camera, though no contact is captured. PO Hussain tells § 87(2)(b) not to touch him again. At 02:05, § 87(2)(b) brings his hand near PO Hussain's BWC. PO Hussain abruptly grabs § 87(2)(b) by the sleeve of his left arm. § 87(2)(b) moves his arms away from PO Hussain's grip. PO Hussain and PO Virella manage to get hold of § 87(2)(b) arms and rear-handcuff him. PO Hussain tells him, "You're going in a bus. You're intoxicated." PO Hussain and PO Virella then escort § 87(2)(b) to the front of the neighboring business, East Village Finest smoke shop. There is no gate in front of the business and the officers do not push him into anything. At 03:09 in PO Virella's footage, while § 87(2)(b) is still standing in front of East Village Finest, he states, "Let me call my mother." Seven seconds later a dial tone is heard. At 02:03 in PO Satriano's BWC footage (04 BR), while § 87(2)(b) is placing a call on his cell phone, PO Hussain takes § 87(2)(b) phone from his hand and appears to place it on top of the coats on the ground near § 87(2)(b) (the phone is not captured making contact with coats). § 87(2)(b) says, "Whoa! I'm on the phone with her, don't hang up. Do not hang up! Call her back right now." At no point in any of the footage is PO Hussain seen displaying his middle finger at § 87(2)(b) however, his face is not constantly visible throughout the footage. PO Virella's and PO Smith's BWC videos were consistent with PO Hussain's and PO Satriano's (03, 05 BR).

PO Hussain stated (08 BR) he and PO Virella were stationed in front of Pianos when a bouncer ejected § 87(2)(b). The bouncer told the officers that § 87(2)(b) had been fighting inside. PO Hussain and PO Virella walked away from the club toward a nearby corner to talk to § 87(2)(b). As the officers spoke with him, § 87(2)(b) was very irate and intoxicated. His speech was slurred, and he was unable to comprehend what the officers were telling him. § 87(2)(b) told them that someone had grabbed him by the neck inside the club and assaulted him. As he spoke to them, § 87(2)(b) repeatedly touched PO Virella and PO Hussain on their vests. They warned him multiple times not to do so. Despite the officers' warnings, § 87(2)(b) continued to touch them, prompting PO Hussain to guide § 87(2)(b) away from the corner by grabbing his arm. § 87(2)(b) pushed PO Hussain's hand away. At that point, PO Hussain decided to place § 87(2)(b) in handcuffs, which he did with the assistance of PO Virella. Once § 87(2)(b) was handcuffed, PO Hussain decided to call an ambulance to the scene. He did so because he believed § 87(2)(b) posed a danger to himself and others given that he was intoxicated, he had gotten kicked out of a club, and his continued touching of the officers. He stated he told § 87(2)(b) that he was going to the hospital to inform him of what was going to happen. As PO Hussain went over the radio to call the ambulance, he looked back at § 87(2)(b) and saw that he was calling someone on his cell phone. At the time, § 87(2)(b) was in police custody and was not allowed to call anyone. PO Hussain grabbed § 87(2)(b) phone from his hand and placed it on top of the jackets on the ground to prevent § 87(2)(b) from making a call. When the ambulance arrived, § 87(2)(b) refused medical attention and EMS deemed § 87(2)(b) well enough to go home. PO Hussain did not push § 87(2)(b) up against a wall or did not display his middle finger at § 87(2)(b) at any point.

PO Virella stated (09 BR) that the bouncers informed the officers that § 87(2)(b) had been ejected for intoxication and that they did not mention anything about fighting inside to him. PO Virella stated that it was PO Hussain's decision to place § 87(2)(b) in handcuffs. PO Virella's statement was otherwise generally consistent with PO Hussain's.

NYPD Patrol Guide Procedure No. 221-13 (10 BR) defines an emotionally disturbed person (EDP) as “A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.” When an EDP has been restrained, officers are to remove property that is dangerous to life or will facilitate escape.

Per the NYPD’s stated values elucidated in Patrol Guide Procedure 200-02 (13 BR), all members of service pledge to maintain a higher standard of integrity than is generally expected others, and to respect the dignity of each individual and render services with courtesy and civility.

Per PD v. Pichardo, DCT Case Number 2015-15012, (14 BR), officers’ use of discourtesy is excusable in “dynamic” and “startling” moments in which officers are struggling to control the situation but is not excusable when it serves no purpose but to belittle a civilian.

§ 87(2)(g) [REDACTED]
[REDACTED] Moreover, it is undisputed that § 87(2)(b) [REDACTED] refused medical treatment and that EMTs deemed him well enough to be released on his own accord. BWC shows that § 87(2)(b) [REDACTED] repeated touching of the officer consisted of minor hand contact as a result of gesturing. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

BWC footage shows that officers did not push § 87(2)(b) [REDACTED] up against a gate after handcuffing him

§ 87(2)(g) [REDACTED]
[REDACTED] It is therefore recommended that **Allegations B and C** be closed as **Unfounded**.

Patrol Guide Procedure No. 221-13 states that once an EDP has been restrained, officers are to remove property that is dangerous to life or will facilitate escape; it states nothing about removing any other items from an EDP. As shown by BWC, § 87(2)(b) [REDACTED] was making a phone call to a family member when his phone was taken. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

It is therefore recommended that **Allegation D** be closed as **Substantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation E** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**15 BR**).
- PO Hussain has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Virella has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 7, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**12 BR**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 13

Investigator:	<u>Coleson Smith</u>	<u>Inv. Coleson Smith</u>	<u>8/30/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>09/05/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date